



File No: EXP202204297

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 26, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ZARA ARCO 2008 PRIMAVERA S.C. DE VIVIENDAS (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202204297

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A., on behalf and representation of B.B.B., C.C.C., D.D.D., E.E.E., F.F.F., G.G.G., H.H.H., I.I.I., J.J.J., K.K.K., L.L.L., and M.M.M. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 29, 2022. The complaint is directed against ZARA ARCO 2008 PRIMAVERA S.C. DE VIVIENDAS with NIF F99218646 (hereinafter, the respondent or the cooperative). The reasons for the complaint are as follows:

They complain against the housing cooperative to which they belong for displaying, on October 14, 2021, in the elevators, a copy of a call for an Extraordinary General Meeting, where the names, surnames, apartment numbers, and amounts owed by certain cooperative members are listed. This copy has been displayed in the elevators of the following residences located in Zaragoza:

- ***ADDRESS.1,
- ***ADDRESS.2,
- ***ADDRESS.3,
- ***ADDRESS.4,
- ***ADDRESS.5,
- ***ADDRESS.6,
- ***ADDRESS.7.

Furthermore, they allege that this document was sent to all cooperative members via email without using the BCC option, which has resulted in the email addresses of all members being known and some members directing communications to each other.

Along with the notification, the following is provided:

- Images of the copy of the Call for the Extraordinary General Meeting, addressed to all cooperative members, where the names and surnames of individuals are visible, along with the corresponding residence and amount owed.
- Images showing the copy of the Call for the Extraordinary General Meeting placed in an elevator.
- An image of several emails sent by the cooperative addressed to the cooperative members where all their email addresses are visible, sent on September 1, 6, and 9, 2021.
- Additionally, images of emails sent by the cooperative to all cooperative members in previous years.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the cooperative for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 25, 2022, as evidenced by the acknowledgment of receipt in the file.

On May 23, 2022, a response was received by this Agency indicating the following:

First – Regarding the publication of agreements on bulletin boards and/or elevators.

The cooperative indicates that this is its usual practice, that it has always done so precisely to prioritize

transparency and in a protective attitude, they have been posting the calls and minutes of the meetings in this manner. That the complainants have never opposed this, never.

Therefore, it understands that this responds to something that was agreed upon in the past by majorities concerning the content of the cooperative's own statutes, of which it should also be noted that the complainants are part. And the minutes in question, based on which the present complaint originates, is no exception, even more so, and as always intended, that everyone should have maximum information both about the call and the agreement and in this case, if possible, to avoid the judicial claims that had been agreed upon.

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The respondent understands that the dissemination of the agreement in the manner it was done is lawful and that the processing of the data is limited to the members, to the information of the members, who are part of the community of property owners (which according to the applicable law also contemplates this possibility, that of posting agreements on the notice board and if the notice board is the elevator, then in the elevator) and that it is a practice and custom that is accepted and consented to and is part of the organization of the cooperative, as the complainants know, and also guarantees their own rights, having agreed that this is the system of communication, information, and notification. The respondent insists that the elevator has always been considered as the notice board of the cooperative and community since its establishment. Evidence of this is provided by the minutes attached as Doc. No. 23, where it is stated that the notification of the call is made through the elevators, and subsequently, the minutes are posted.

Second. - Regarding the sending of emails from the cooperative to a group of members without using blind copy

The respondent indicates that the individuals appearing in that group of Zara Arco belong to a housing cooperative created in 2008. The homes were delivered in December 2012, and that same year they were also constituted as a Community of Neighbors. Since the beginning, the members had already warned that there had been poor management of the cooperative and due to the multitude of meetings they had to hold to address numerous problems and with the aim of acting at all times with maximum transparency and collaboration, it was considered to create a group so that everyone could participate, express opinions, contribute solutions, and, ultimately, work as a team.

The intention was to create an open group solely and exclusively for the members and neighbors to address issues related to the cooperative. Attached as doc. No. 1 is an email dated July 15, 2013, to prove that this topic was being studied since then.

The respondent points out that finally, for that purpose, the Google group (Gmail) was created and that all emails provided by the neighbors who wanted to participate in the group were transferred absolutely voluntarily, and those who wanted to be part of the group provided their data expressly authorizing to be part of it.

There are emails dated June 25, 2013, where it is recorded that the individuals who wanted to be part of the group provided their email addresses; this was done in a meeting, and it is noted that it is to create a "group, forum, or whatever is needed..."

Therefore, it indicates that to access the group, one could only do so as a member, and to be a member, one had to first be "invited," and instructions were provided to be part of it. Belonging to the group in the way it was created was an option and therefore something voluntary; proof of this is that not all members belong to it (not everyone wanted to be part of it).

The Cooperative states that emails have been sent visibly to all since its creation in 2013, and since then, there has never been a complaint nor has any of these individuals requested that their names be hidden. Consequently, the respondent understands that there is express consent from all participants in the group for this and that voluntarily and with full knowledge of their addresses, they consented to this being done, including the complainants. Those who did not want to join did not join, but those who did were aware of the processing of their data, and since then, for more than 9 years, there has been

no complaint whatsoever.

It provides emails where it considers it is demonstrated that this group is used for common issues where people can express opinions, such as the one from July 9, 2014, where a neighbor communicates their interest and management in community wifi (Doc. 21) or emails sent by other members and neighbors to the group with information they wanted to communicate to everyone. The Cooperative concludes that it has always acted in good faith, respecting the majority, and with the aim of facilitating matters for everyone, and of course, without straying from or losing sight of data protection, as evidenced by Doc. 22, dated November 6, 2013, that is, having already obtained the emails of the cooperative members, it was requested that the former manager be the one to send the emails of the neighbors to the new manager, precisely to avoid violating the Law. That is to say, that at all times the emails provided to be part of the group have been used for the purpose for which it was created and not for any other.

THIRD: On June 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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Regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that the Community carries out, among other processes, the collection, registration, organization, storage, modification, consultation, use, and deletion of the following personal data of individuals, such as: name, surname, address, identification number, telephone number, etc.

The Housing Cooperative carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

The GDPR establishes in its Recital 32 that consent must be given through a clear affirmative act that reflects a free, specific, informed, and unambiguous expression of the data subject's will to accept the processing of personal data concerning them, such as a written statement, including by electronic means, or a verbal statement. This could include ticking a box on an internet website, selecting technical parameters for the use of information society services, or any other statement or conduct that clearly indicates in this context that the data subject accepts the proposed processing of their personal data. Therefore, silence, pre-ticked boxes, or inaction should not constitute consent. Consent must be given for all processing activities carried out for the same or the same purposes. When processing has multiple purposes, consent must be given for all of them. If the data subject's consent is to be given as a result of a request made by electronic means, the request must be clear, concise, and not unduly disrupt the use of the service for which it is provided. (The underlining is ours)

For its part, the LOPDGDD, in Article 6 Processing based on the consent of the affected party, indicates in its section 1 that

1. In accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, consent of the affected party is understood as any expression of free, specific, informed, and unambiguous will by which they accept, either through a statement or a clear affirmative action, the processing of personal

data concerning them. (The underlining is ours)

In the case at hand, regarding the complaint related to the sending of emails without using the blind carbon copy (BCC) option and that this has resulted in all cooperative members knowing each other's email addresses, it is noted that, in view of the documentation provided by the respondent and which is part of the file to which we refer, these emails were sent within a Google group created by the cooperative members themselves to communicate with each other regarding cooperative matters.

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Thus, in the year 2013, some members of the cooperative (also constituted as a community of neighbors) decided to create a Google group (Gmail) to address the various issues and problems they had (to create the group, forum, or whatever was needed). It was established as a communication group so that all neighbors could stay in contact and discuss matters concerning the Community. The group was named "Grupo Comunidad de vecinos Edificio Primavera."

To be part of this group, one had to receive an invitation and accept it (button "accept this invitation").

Furthermore, to access the group, each user must use a personal password that they have defined.

And to unsubscribe from the group, there is an email address provided by Google for that purpose.

There is evidence of emails sent since then to address various matters, share information, and hold discussions, with cooperative members knowing each other's email addresses for years.

The claimants have been part of this group practically from the beginning, having been used by several of them even to send emails to all the others.

Therefore, in light of this, and in accordance with the aforementioned regulations, it is established that the claimants had previously consented to be part of the Group and, therefore, to the processing of their email addresses.

For the reasons stated, in view of the actions taken and the documentation in the file, there is no inference of an infringing act by ZARA ARCO 2008 PRIMAVERA S.C. DE VIVIENDAS with NIF F99218646 within the jurisdiction of the Spanish Agency for Data Protection, regarding the sending of

III
Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, it is established that the personal data of the claimants (housing and information about amounts owed along with their names and surnames) were improperly exposed by the Cooperative to third parties, as they appeared in a document calling for an Extraordinary General Meeting that was placed by the Cooperative inside the elevators of several residences, a place through which any person, whether or not a cooperative member, can transit.

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public access area, which constitutes unauthorized access to such data by third parties.

The Cooperative puts forward several arguments, such as that the data processing is limited to the members; that, furthermore, the members are part of a community of property owners and that, according to the applicable law, it also contemplates the possibility of posting agreements on the notice board, and if that board is the elevator, then it is correct; and that it is an accepted and consented practice and custom that is part of the organization of the cooperative, having agreed that

this is the system of communication, information, and notification. In response to this, several points must be noted:

The first, as already mentioned, is that placing documents of the cooperative (notices of meetings, minutes, etc.) containing personal data in public passage areas (elevators) not only allows access to them by the members but also by any person who accesses the property, which constitutes unauthorized access to such data by third parties.

Secondly, regarding the fact that the cooperative members are also constituted as a community of property owners and that, therefore, the Horizontal Property Law applies, understanding that this law allows agreements to be posted on the notice board and that, if it has been agreed by all that the elevator is the appropriate place, it should be noted that, as a means of personal and individualized notification to the owner, the Horizontal Property Law indicates the circumstances under which the exposure of personal data related to matters arising from the management of the Community of Property Owners is authorized.

Thus, Article 9.h) of the Horizontal Property Law states as an obligation of the owner to "Communicate to whoever performs the functions of Secretary of the community, by any means that allows for acknowledgment of receipt, the address in Spain for the purposes of summons and notifications of all kinds related to the community. In the absence of this communication, the address for summons and notifications will be considered to be the apartment or premises belonging to the community, with full legal effects for those delivered to the occupant thereof.

If a summons or notification to the owner cannot be carried out at the place provided in the previous paragraph, it will be understood to have been made by placing the corresponding communication on the community's notice board, or in a visible place for general use designated for this purpose, with due diligence expressing the date and reasons for proceeding with this form of notification, signed by whoever performs the functions of Secretary of the community, with the approval of the President. The notification made in this manner will produce full legal effects within three calendar days."

In this case, the exposure of the personal data of the claimants in the community elevator does not comply with the provisions set forth in the Horizontal Property Law.

Finally, the fact that it has been agreed that the elevator is the place of communication that the neighbors and/or cooperative members have decided to use does not mean that such communications are made in violation of the regulations on data protection.

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personal data, especially the obligation to preserve the confidentiality of the same, particularly in relation to third parties. That is to say, it may serve as a communication channel, but without containing personal data beyond what is permitted by applicable legislation.

In this regard, it is pertinent to bring to attention the Judgment of 14/04/2008, issued in case 379/2006, by the First Section of the Administrative Litigation Chamber of the National Court, regarding the issue of providing data among members, in which it is stated that "it is legitimate to provide members with information about the management of matters of common interest, as long as the dissemination of personal data does not exceed the limited scope of that relationship." (The emphasis is ours)

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement, attributable to the Community, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

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V

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the infringement in question is very serious for the purposes of the GDPR.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1.f) of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

VI

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;

d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the

authority of the controller or the processor and having access to personal data only processes such data in accordance with...

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instructions of the controller, unless required to do so under Union or Member State law.”

In the present case, at the time of the breach, it cannot be said that the respondent had appropriate measures in place to prevent the incident, as it published the personal data of the complainants in the elevators of several residences, that is, in an area easily accessible by anyone, also acknowledging that it has been doing so for a long time, which highlights the lack of adequate technical and organizational measures.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the Community, for violation of Article 32 of the GDPR.

VII

Qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

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Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the infringement in question is serious for the purposes of the GDPR.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for an initial sanction of €1,000 (one thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ZARA ARCO 2008 PRIMAVERA S.C. DE VIVIENDAS, with NIF F99218646:

- for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.
- for the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT N.N.N. as the instructor and P.P.P. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

-TWO THOUSAND EUROS (€2,000) for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

-ONE THOUSAND EUROS (€1,000) for the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

FIFTH: TO NOTIFY this agreement to ZARA ARCO 2008 PRIMAVERA S.C. DE VIVIENDAS, with NIF F99218646, granting a hearing period of ten working days for it to make allegations and present the evidence it deems appropriate.

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convenient. In your written allegations, you must provide your NIF and the file number that appears in the heading of this document.

If you do not make allegations regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 2,400 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 2,400 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 1,800 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (2,400 euros or 1,800 euros), you must do so by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure

that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure as having been carried out. You are informed that you can identify an email address before this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On August 3, 2023, the respondent has proceeded to pay the sanction in the amount of 1,800 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202204297, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to ZARA ARCO 2008 PRIMAVERA S.C. DE VIVIENDAS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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